

**Sixty-ninth Legislative Assembly of North Dakota
In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1008
(Appropriations Committee)

AN ACT to provide an appropriation for defraying the expenses of the public service commission; to amend and reenact sections 49-01-05 and 57-43.2-19 of the North Dakota Century Code, relating to the salaries of the public service commissioners and deposits of special fuels excise taxes; and to provide loan authorization.

BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:

SECTION 1. APPROPRIATION. The funds provided in this section, or so much of the funds as may be necessary, are appropriated out of any moneys in the general fund in the state treasury, not otherwise appropriated, and from other funds derived from special funds and federal funds, to the public service commission for the purpose of defraying the expenses of the public service commission, for the biennium beginning July 1, 2025, and ending June 30, 2027, as follows:

	<u>Base Level</u>	<u>Adjustments or Enhancements</u>	<u>Appropriation</u>
Salaries and wages	\$11,026,304	\$1,148,083	\$12,174,387
New and vacant FTE pool	0	265,735	265,735
Operating expenses	2,205,487	547,167	2,752,654
Capital assets	25,000	205,000	230,000
Grants	20,000	0	20,000
Abandoned mined lands contractual services	6,000,000	0	6,000,000
Rail rate complaint case	900,000	0	900,000
Railroad safety program	672,206	41,024	713,230
Specialized legal services	<u>420,000</u>	<u>(19,834)</u>	<u>400,166</u>
Total all funds	\$21,268,997	\$2,187,175	\$23,456,172
Less other funds	<u>13,779,645</u>	<u>454,823</u>	<u>14,234,468</u>
Total general fund	\$7,489,352	\$1,732,352	\$9,221,704
Full-time equivalent positions	45.00	0.00	45.00

SECTION 2. ONE-TIME FUNDING - EFFECT ON BASE BUDGET - REPORT TO SEVENTIETH LEGISLATIVE ASSEMBLY. The following amounts reflect the one-time funding items included in the appropriation in section 1 of this Act which are not included in the entity's base budget for the 2027-29 biennium and which the entity shall report to the appropriations committees of the seventieth legislative assembly regarding the use of this funding:

<u>One-Time Funding Description</u>	<u>General Fund</u>	<u>Other Funds</u>	<u>Total</u>
Drone imaging technology	\$5,580	\$149,420	\$155,000
Federal intervention funding	<u>250,000</u>	<u>0</u>	<u>250,000</u>
Total	\$255,580	\$149,420	\$405,000

SECTION 3. NEW AND VACANT FTE POOL - LIMITATION - TRANSFER REQUEST. The public service commission may not spend funds appropriated in the new and vacant FTE pool line item in section 1 of this Act, but may request the office of management and budget to transfer funds from the new and vacant FTE pool line item to the salaries and wages and railroad safety program line items in accordance with the guidelines and reporting provisions included in House Bill No. 1015, as approved by the sixty-ninth legislative assembly.

SECTION 4. RAIL RATE COMPLAINT CASE - LOAN AUTHORIZATION. The public service commission may obtain a loan from the Bank of North Dakota for costs associated with a rail rate

complaint case. The loan may not exceed \$900,000, and the interest rate associated with the loan must be the prevailing interest rate charged to North Dakota governmental entities. The public service commission shall repay the loan from amounts available from damages or proceeds received, net of legal fees, from a successful outcome of a rail complaint case. If moneys anticipated to be available on June 30, 2027, are not sufficient to repay the loan, the public service commission may request a deficiency appropriation from the legislative assembly to repay the loan.

SECTION 5. AMENDMENT. Section 49-01-05 of the North Dakota Century Code is amended and reenacted as follows:

49-01-05. Salary of commissioners.

The annual salary of a commissioner is ~~one hundred thirty thousand dollars through June 30, 2024, and one hundred thirty-five thousand two hundredone hundred thirty-nine thousand two hundred fifty-six dollars through June 30, 2026, and one hundred forty-three thousand four hundred thirty-four dollars thereafter.~~ All fees received or charged by any commissioner for any act or service rendered in any official capacity must be accounted for and paid over by the commissioner monthly to the state treasurer and must be credited to the general fund of the state.

SECTION 6. AMENDMENT. Section 57-43.2-19 of the North Dakota Century Code is amended and reenacted as follows:

57-43.2-19. Transfer, deposit, and distribution of funds.

All taxes, license fees, penalties, and interest collected under this chapter must be transferred to the state treasurer who shall deposit moneys in a highway tax distribution fund, except all special fuels excise taxes collected on sales of diesel fuel to a railroad under section 57-43.2-03 of up to ~~three hundred thirty-two thousand three hundred twenty-seven~~three hundred fifty-two thousand eight hundred ninety-two dollars per year must be transferred to the state treasurer who shall deposit the moneys in the rail safety fund. The highway tax distribution fund must be distributed in the manner as prescribed by section 54-27-19.

Speaker of the House

President of the Senate

Chief Clerk of the House

Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1008.

House Vote: Yeas 80 Nays 10 Absent 4

Senate Vote: Yeas 45 Nays 1 Absent 1

Chief Clerk of the House

Received by the Governor at _____ M. on _____, 2025.

Approved at _____ M. on _____, 2025.

Governor

Filed in this office this _____ day of _____, 2025,

at _____ o'clock _____ M.

Secretary of State